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221027
Law 99: Legal Bibliography — Assignment 2
TOPIC: SAME-SEX MARRIAGE/PARTNERSHIP BETWEEN FILIPINOS

	Name and details of material Include one-sentence remark on the relevance of the material to the chosen topic *For primary sources: List according to the type of source, arranged according to hierarchy of laws* *For secondary sources: List according to the type of source, arranged from most reliable to least reliable*	**Persuasive value** *For primary sources: Mandatory or Persuasive* *For secondary sources: Persuasive **only***	**Repositories/Databases** *For primary sources: List the online and/or non-online legal database where the material may be found* *For secondary sources: Leave blank*
	PRIMARY SOURCES		
	FIRST LEVEL: THE CONSTITUTION. The fundamental law, to which all other laws, acts, orders, and regulations must conform (CIVIL CODE, art. 7).		
A.	**1987 CONSTITUTION OF THE REPUBLIC OF THE PHILIPPINES *(highest in the hierarchy of laws)***		
1.	CONST. art. II, sec. 2. By adopting the generally accepted principles of international law as part of the law of the land, this incorporation clause is the gateway through which international human rights norms on equality and family life are invoked in the same-sex marriage debate.	Mandatory	Official Gazette; Supreme Court E-Library
2.	CONST. art. II, sec. 6. Declares the separation of Church and State inviolable, a principle invoked by those who argue that religious conceptions of marriage cannot by themselves justify withholding civil recognition from same-sex couples.	Mandatory	Official Gazette; Supreme Court E-Library

3.	CONST. art. II, sec. 11. Commits the State to value the dignity of every human person and to guarantee full respect for human rights, a policy cited by advocates of legal recognition for same-sex partnerships.	Mandatory	Official Gazette; Supreme Court E-Library
4.	CONST. art. II, sec. 12. Recognizes the sanctity of family life and protects the family as a basic autonomous social institution, framing the question of whether households formed by same-sex partners fall within the State's protection of families.	Mandatory	Official Gazette; Supreme Court E-Library
5.	CONST. art. III, sec. 1. The due process and equal protection clauses are the principal constitutional grounds invoked in *Falcis* against the Family Code's restriction of marriage to a man and a woman, and were applied in *Ang Ladlad* to strike down discrimination against an LGBT group.	Mandatory	Official Gazette; Supreme Court E-Library
6.	CONST. art. III, sec. 5. Guarantees the free exercise of religion and prohibits its establishment, provisions relied upon in *Ang Ladlad* against religion-based exclusion and invoked in *Falcis* by a church that sought to solemnize same-sex unions.	Mandatory	Official Gazette; Supreme Court E-Library
7.	CONST. art. XIII, sec. 18. Empowers the Commission on Human Rights to investigate human rights violations and to recommend measures to Congress, the constitutional basis of its advocacy for SOGIESC equality and civil partnership legislation.	Mandatory	Official Gazette; Supreme Court E-Library
8.	CONST. art. XV, sec. 1. Recognizes the Filipino family as the foundation of the nation without defining "family" by reference to the sex of its members.	Mandatory	Official Gazette; Supreme Court E-Library

9.	CONST. art. XV, sec. 2. Declares marriage an inviolable social institution and the foundation of the family; as the Supreme Court observed in *Falcis*, the Constitution does not define or restrict marriage on the basis of sex, gender, sexual orientation, or gender identity or expression.	Mandatory	Official Gazette; Supreme Court E-Library
10.	CONST. art. XV, sec. 3, par. (1). Protects the right of spouses to found a family in accordance with their religious convictions, a right that presupposes a legally recognized marriage which same-sex couples presently cannot contract.	Mandatory	Official Gazette; Supreme Court E-Library
	SECOND LEVEL: STATUTES AND SOURCES OF EQUAL RANK (B to E are on the same level). Treaties and generally accepted principles of international law have equal standing with statutes (CONST. art. II, sec. 2; Secretary of Justice v. Lantion, G.R. No. 139465, January 18, 2000); rules promulgated by the Supreme Court have the force of law (CONST. art. VIII, sec. 5 (5)); and judicial decisions applying or interpreting the laws or the Constitution form part of the legal system (CIVIL CODE, art. 8). Non-binding international instruments and views of treaty bodies under C are persuasive only.		
B.	**STATUTES (CODES, PRESIDENTIAL DECREES, AND REPUBLIC ACTS)**		
1.	FAMILY CODE, art. 1. Defines marriage as "a special contract of permanent union between a man and a woman," the core statutory provision excluding same-sex couples from marriage and the main target of the petition in *Falcis*.	Mandatory	Official Gazette; Supreme Court E-Library
2.	FAMILY CODE, art. 2 (1). Requires, as an essential requisite of marriage, the legal capacity of the contracting parties "who must be a male and a female," the absence of which renders a marriage void *ab initio* under Article 4.	Mandatory	Official Gazette; Supreme Court E-Library
3.	FAMILY CODE, art. 26, par. 1. Recognizes as valid in the Philippines marriages validly solemnized abroad, subject to listed exceptions, the provision on which arguments for recognizing same-sex marriages of Filipinos celebrated abroad are built.	Mandatory	Official Gazette; Supreme Court E-Library

4.	FAMILY CODE, art. 45 (3), in relation to art. 46 (4). Treats the concealment of "homosexuality or lesbianism existing at the time of the marriage" as fraud that renders a marriage voidable, a provision assailed in *Falcis* and applied in *Salva-Roldan v. Roldan*.	Mandatory	Official Gazette; Supreme Court E-Library
5.	FAMILY CODE, art. 55 (6). Makes the "lesbianism or homosexuality of the respondent" a ground for legal separation, a provision likewise assailed in *Falcis* as discriminatory against LGBT persons.	Mandatory	Official Gazette; Supreme Court E-Library
6.	FAMILY CODE, art. 148. Governs property relations in cohabitation not covered by Article 147, recognizing co-ownership only in proportion to actual joint contributions, the rule the Supreme Court applied to same-sex partners in *Josef v. Ursua*.	Mandatory	Official Gazette; Supreme Court E-Library
7.	CIVIL CODE, art. 15. Under the nationality principle, laws on family rights and duties and on the status and legal capacity of persons bind Filipinos even abroad, which bears on whether a same-sex marriage contracted by Filipinos in another country is valid in the Philippines.	Mandatory	Official Gazette; Supreme Court E-Library
8.	CIVIL CODE, art. 17, par. 3. Provides that prohibitive laws concerning persons, and those involving public order, public policy, and good customs, are not rendered ineffective by foreign laws or judgments, a potential limit on recognizing foreign same-sex marriages of Filipinos.	Mandatory	Official Gazette; Supreme Court E-Library
9.	REV. PEN. CODE, art. 352. Penalizes priests, ministers, and civil authorities who perform or authorize any illegal marriage ceremony, exposing officiants of same-sex unions to possible criminal liability.	Mandatory	Official Gazette; Supreme Court E-Library

10.	MUSLIM CODE, arts. 14, 16. Defines marriage under Muslim personal law as both a civil contract and a social institution governed by the Code and the Shari'a, and confers capacity to marry on "any Muslim male" and "any Muslim female," excluding same-sex unions among Filipino Muslims.	Mandatory	Official Gazette; Supreme Court E-Library
11.	Rep. Act No. 9262 (2004), sec. 3 (a). Defines violence against women and their children as acts committed by "any person" against a woman with whom the person has or had a sexual or dating relationship, language the Supreme Court has read to cover lesbian relationships.	Mandatory	Official Gazette; Supreme Court E-Library
12.	Rep. Act No. 9710 (2009), sec. 19. The Magna Carta of Women directs the State to eliminate discrimination against women in all matters relating to marriage and family relations, framing marital rights in terms of equality between women and men.	Mandatory	Official Gazette; Supreme Court E-Library
13.	Rep. Act No. 11313 (2019), sec. 4. The Safe Spaces Act penalizes gender-based sexual harassment in streets and public spaces, expressly including "transphobic, homophobic and sexist slurs," thereby protecting LGBT persons, including same-sex couples, from harassment in public.	Mandatory	Official Gazette; Supreme Court E-Library
14.	Rep. Act No. 11199 (2019), sec. 8 (e), (k). Limits a Social Security System member's dependents and primary beneficiaries to the legal spouse and children, so that a same-sex partner may receive death benefits only as a designated beneficiary in the absence of all legal dependents.	Mandatory	Official Gazette; Supreme Court E-Library
15.	Rep. Act No. 8291 (1997), sec. 2 (f)-(h). Defines the dependents and beneficiaries of GSIS members by reference to the legitimate or legal spouse, leaving same-sex partners of government employees outside the survivorship benefits available to married spouses.	Mandatory	Official Gazette; Supreme Court E-Library

16.	Rep. Act No. 11642 (2022), sec. 21. Enumerates who may adopt under the administrative adoption process; because same-sex unions are not legally recognized, same-sex partners may adopt only as individual adopters and not jointly as spouses.	Mandatory	Official Gazette; Supreme Court E-Library
17.	Rep. Act No. 10172 (2012), sec. 1. Allows the administrative correction of clerical or typographical errors in the sex entry of a birth certificate but not a change of sex, leaving intact the rule in *Silverio* that bears on a person's sex-based capacity to marry.	Mandatory	Official Gazette; Supreme Court E-Library
C.	**INTERNATIONAL LAW (CONVENTIONS, DECLARATIONS, AND DECISIONS OF INTERNATIONAL BODIES)** ***(same level as statutes)***		
1.	International Covenant on Civil and Political Rights, December 19, 1966 (1976), 999 U.N.T.S. 171, art. 23. Protects the family and recognizes "the right of men and women of marriageable age to marry," gendered wording that the Human Rights Committee in *Joslin* read as not requiring States to open marriage to same-sex couples.	Mandatory	United Nations Treaty Collection (treaties.un.org); OHCHR website (ohchr.org)
2.	International Covenant on Civil and Political Rights, December 19, 1966 (1976), 999 U.N.T.S. 171, arts. 2 (1), 17, 26. Guarantees non-discrimination, equality before the law, and protection against interference with privacy and family, which the Human Rights Committee has read to prohibit discrimination based on sexual orientation.	Mandatory	United Nations Treaty Collection (treaties.un.org); OHCHR website (ohchr.org)
3.	International Covenant on Economic, Social and Cultural Rights, December 19, 1966 (1976), 993 U.N.T.S. 3, art. 10 (1). Accords "the widest possible protection and assistance" to the family and requires that marriage be entered into with the free consent of the intending spouses, without specifying the sex of the spouses.	Mandatory	United Nations Treaty Collection (treaties.un.org); OHCHR website (ohchr.org)

4.	Convention on the Elimination of All Forms of Discrimination against Women, July 15, 1980 (1981), 1249 U.N.T.S. 13, art. 16. Obliges States to eliminate discrimination against women in matters relating to marriage and family relations on a basis of equality of men and women, the source of the Magna Carta of Women's marriage provisions.	Mandatory	United Nations Treaty Collection (treaties.un.org); OHCHR website (ohchr.org)
5.	Universal Declaration of Human Rights, G.A. Res. 217 (III) A, U.N. Doc. A/RES/217(III), art. 16 (December 10, 1948). Declares that "men and women of full age" have the right to marry and to found a family, the model for the marriage provisions of later human rights treaties.	Persuasive	United Nations website (un.org); UN Digital Library
6.	Toonen v. Australia, Communication No. 488/1992, U.N. Doc. CCPR/C/50/D/488/1992 (Human Rights Comm., March 31, 1994). The Human Rights Committee held that the reference to "sex" in Articles 2 (1) and 26 of the ICCPR includes sexual orientation, laying the foundation for sexual-orientation equality claims under the Covenant.	Persuasive	OHCHR Jurisprudence Database (juris.ohchr.org); UN Treaty Body Database
7.	Joslin v. New Zealand, Communication No. 902/1999, U.N. Doc. CCPR/C/75/D/902/1999 (Human Rights Comm., July 17, 2002). The Committee held that a State's refusal to allow same-sex couples to marry does not violate the ICCPR because Article 23 (2) refers specifically to "men and women."	Persuasive	OHCHR Jurisprudence Database (juris.ohchr.org); UN Treaty Body Database
8.	Young v. Australia, Communication No. 941/2000, U.N. Doc. CCPR/C/78/D/941/2000 (Human Rights Comm., August 6, 2003). The Committee found that denying a veterans' pension to the surviving same-sex partner of a veteran violated the equality guarantee of Article 26.	Persuasive	OHCHR Jurisprudence Database (juris.ohchr.org); UN Treaty Body Database
9.	X v. Colombia, Communication No. 1361/2005, U.N. Doc. CCPR/C/89/D/1361/2005 (Human Rights Comm., March 30, 2007). The Committee held that denying a pension to the surviving partner of a same-sex union, where unmarried heterosexual partners were entitled, was discrimination based on sexual orientation under Article 26.	Persuasive	OHCHR Jurisprudence Database (juris.ohchr.org); UN Treaty Body Database

10.	Human Rights Comm., Concluding Observations: Philippines, U.N. Doc. CCPR/C/PHL/CO/4 (November 13, 2012). The Committee urged the Philippines to adopt a comprehensive anti-discrimination law that covers sexual orientation and gender identity, noting that the pending bill had not been passed.	Persuasive	UN Treaty Body Database (tbinternet.ohchr.org); UN Digital Library
11.	Human Rights Council Res. 17/19, U.N. Doc. A/HRC/RES/17/19 (June 17, 2011). The first United Nations resolution on human rights, sexual orientation, and gender identity, expressing grave concern over violence and discrimination on these grounds.	Persuasive	UN Digital Library; OHCHR website (ohchr.org)
12.	Human Rights Council Res. 32/2, U.N. Doc. A/HRC/RES/32/2 (June 30, 2016). Created the mandate of the Independent Expert on protection against violence and discrimination based on sexual orientation and gender identity.	Persuasive	UN Digital Library; OHCHR website (ohchr.org)
D.	**JUDICIAL ISSUANCES OF THE SUPREME COURT *(same level as statutes)***		
1.	RULES OF COURT, Rule 108. Provides the judicial procedure for the cancellation or correction of entries in the civil register, the remedy invoked in *Silverio* and *Cagandahan* to change the sex entry that determines capacity to marry under the Family Code.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph); Supreme Court Library
2.	VOID AND VOIDABLE MARRIAGES RULE, A.M. No. 02-11-10-SC, effective March 15, 2003. Governs the procedure in petitions for declaration of nullity and annulment of marriage, including annulment actions grounded on the fraudulent concealment of homosexuality under Article 46 (4) of the Family Code.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph); Supreme Court Library
3.	LEGAL SEPARATION RULE, A.M. No. 02-11-11-SC, effective March 15, 2003. Governs petitions for legal separation, including those grounded on the lesbianism or homosexuality of the respondent under Article 55 (6) of the Family Code.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph); Supreme Court Library

4.	New Code of Judicial Conduct for the Philippine Judiciary, A.M. No. 03-05-01-SC, Canon 5, secs. 1-2 (2004). Requires judges to understand diversity in society and not to manifest bias or prejudice on irrelevant grounds, standards the Supreme Court enforced in *Espejon v. Lorredo* against a judge who disparaged litigants' same-sex relationship.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph); Supreme Court Library
5.	Code of Professional Responsibility and Accountability, A.M. No. 22-09-01-SC, Canon V, sec. 1 (2023). Prohibits a lawyer from declining to represent a person solely on account of sexual orientation or gender identity, among other grounds, securing access to counsel for same-sex couples asserting their rights.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph); Supreme Court Library
E.	**JUDICIAL DECISIONS OF THE SUPREME COURT *(same level as statutes)***		
1.	Falcis III v. Civil Registrar General, G.R. No. 217910, September 3, 2019. The Court En Banc dismissed the first petition to declare Family Code Articles 1, 2, 46 (4), and 55 (6) unconstitutional for lack of an actual case, lack of standing, and disregard of the hierarchy of courts, while noting that the Constitution does not restrict marriage on the basis of sex or sexual orientation and leaving the matter to Congress.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)
2.	Garcia v. Drilon, G.R. No. 179267, June 25, 2013. In upholding R.A. No. 9262, the Court En Banc recognized that the law's gender-neutral term "any person" may cover a woman offender in a lesbian relationship, a point later applied in *Jacinto v. Fouts*.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)
3.	Ang Ladlad LGBT Party v. Commission on Elections, 632 Phil. 32 (2010). The Court held that denying party-list accreditation to an LGBT group on religious and moral grounds violated the non-establishment clause, equal protection, and freedom of expression and association, while describing the Yogyakarta Principles as at best *de lege ferenda*.	Mandatory	Philippine Reports, vol. 632; Supreme Court E-Library

4.	Estrada v. Escritor, 455 Phil. 411 (2003); 525 Phil. 110 (2006). Adopted benevolent neutrality and the compelling state interest test in resolving a religiously sanctioned non-marital union, the framework for weighing religious claims on both sides of the same-sex marriage debate.	Mandatory	Philippine Reports, vols. 455 & 525; Supreme Court E-Library
5.	Goitia v. Campos Rueda, 35 Phil. 252 (1916). Described marriage as "something more than a mere contract," a relation whose rights and duties rest on the general law rather than on the parties' agreement, a characterization central to whether the State may redefine who may marry.	Mandatory	Philippine Reports, vol. 35; Supreme Court E-Library
6.	Josef v. Ursua, G.R. No. 267469, February 5, 2025. The Court held that the property relations of cohabiting same-sex partners are governed by Article 148 of the Family Code, so that a partner who proves actual contribution is a co-owner, while stating that broader protection for same-sex couples is for Congress to provide.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)
7.	Salva-Roldan v. Roldan, G.R. No. 268109, March 3, 2025. The Court annulled a marriage on the ground of the husband's fraudulent concealment of his homosexuality under Article 45 (3) in relation to Article 46 (4), reiterating that concealment, not homosexuality itself, vitiates consent.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)
8.	Jacinto v. Fouts, G.R. No. 250627 (Resolution), December 7, 2022. The Court sustained a prosecution under R.A. No. 9262 between former female live-in partners, holding that the law's application to lesbian relationships had already been settled in *Garcia v. Drilon*.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)
9.	Espejon v. Lorredo, A.M. No. MTJ-22-007, March 9, 2022. The Court suspended and fined a judge for homophobic remarks against litigants on account of their perceived same-sex relationship, finding a violation of the New Code of Judicial Conduct and work-related sexual harassment.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)

10.	Republic v. Cagandahan, 586 Phil. 637 (2008). The Court allowed an intersex person with congenital adrenal hyperplasia to change the registered sex from female to male and the registered name, bearing on how "male" and "female" are determined for purposes of capacity to marry.	Mandatory	Philippine Reports, vol. 586; Supreme Court E-Library
11.	Almelor v. Regional Trial Court of Las Piñas City, G.R. No. 179620, August 26, 2008. The Court ruled that it is the concealment of homosexuality, not homosexuality *per se*, that constitutes fraud under Article 46 (4), and found the evidence insufficient to annul the marriage.	Mandatory	Supreme Court E-Library; Supreme Court website (sc.judiciary.gov.ph)
12.	Silverio v. Republic, 562 Phil. 953 (2007). The Court denied a transsexual woman's petition to change the name and sex entries in her birth certificate, reasoning that no law allows it and that granting it would permit a union between two persons of the same birth sex despite marriage being between a man and a woman.	Mandatory	Philippine Reports, vol. 562; Supreme Court E-Library
	THIRD LEVEL: EXECUTIVE AND ADMINISTRATIVE ISSUANCES AND DECISIONS, AND CONGRESSIONAL RESOLUTIONS (F to H). Administrative or executive acts, orders, and regulations are valid only when they are not contrary to the laws or the Constitution (CIVIL CODE, art. 7). Bills, committee reports, and simple resolutions are not law and are persuasive only.		
F.	**EXECUTIVE AND ADMINISTRATIVE ISSUANCES (QUASI-LEGISLATIVE)**		
1.	CSC Res. No. 01-0940 (2001). The Administrative Disciplinary Rules on Sexual Harassment Cases classify degrading remarks or innuendoes directed at a person's sexual orientation as an offense, a rule applied by the Supreme Court in *Espejon v. Lorredo* to a judge's remarks against a same-sex couple.	Mandatory	Civil Service Commission (csc.gov.ph); Office of the National Administrative Register (ONAR), U.P. Law Center

G.	**EXECUTIVE AND ADMINISTRATIVE DECISIONS (QUASI-JUDICIAL)** ***(same level as executive and administrative issuances)***		
1.	*In re* Ang Ladlad LGBT Party, COMELEC SPP No. 09-228 (PL), November 11, 2009. The COMELEC Second Division denied an LGBT group's petition for party-list registration on moral grounds, citing Biblical and Koranic passages, a ruling the Supreme Court later set aside.	Persuasive	Commission on Elections (deciding agency); quoted in *Ang Ladlad* (Supreme Court E-Library)
2.	*In re* Ang Ladlad LGBT Party, COMELEC SPP No. 09-228 (PL), December 16, 2009. The COMELEC En Banc, in a divided vote, denied reconsideration, prompting the certiorari petition that produced the Supreme Court's leading decision on LGBT equality.	Persuasive	Commission on Elections (deciding agency); quoted in *Ang Ladlad* (Supreme Court E-Library)
H.	**CONGRESSIONAL BILLS, RESOLUTIONS, AND COMMITTEE REPORTS** ***(grouped with executive and administrative issuances; not law)***		
1.	S. No. 1600, 19th Cong., 1st Sess. (2022). The Senate's consolidated "SOGIESC Equality Act," which would penalize discrimination on the basis of sexual orientation, gender identity or expression, and sex characteristics, but which was never approved in plenary.	Persuasive	Senate Legislative Information System (web.senate.gov.ph); Senate Legislative Reference Bureau
2.	Comm. on Women, Children, Family Relations and Gender Equality & Comm. on Finance, S. Rpt. 15, 19th Cong., 1st Sess. (2022). The joint committee report recommending approval of S. No. 1600, signed by a majority of senators but referred back to the Committee on Rules after opposition from religious groups.	Persuasive	Senate Legislative Information System (web.senate.gov.ph); Senate Legislative Reference Bureau
3.	S. No. 449, 19th Cong., 1st Sess. (2022). Senator Robinhood Padilla's bill "Institutionalizing Civil Unions of Same Sex Couples, Establishing Their Rights and Obligations," which would grant same-sex civil partners the benefits and protections enjoyed by married couples.	Persuasive	Senate Legislative Information System (web.senate.gov.ph); Senate Legislative Reference Bureau

4.	H. No. 1015, 19th Cong., 1st Sess. (2022). The "Civil Partnership Act," which would allow couples of the same or opposite sex to enter into civil partnerships with rights such as designating partners as beneficiaries and inheriting from them by intestate succession.	Persuasive	House of Representatives Legislative Information System (congress.gov.ph)
5.	H. No. 2264, 18th Cong., 1st Sess. (2019). Representative Pantaleon Alvarez's refiled Civil Partnership bill allowing couples of the same or opposite sex to form civil partnerships, which remained pending at the committee level.	Persuasive	House of Representatives Legislative Information System (congress.gov.ph)
6.	H. No. 6595, 17th Cong., 2d Sess. (2017). The Civil Partnership Act filed by then Speaker Pantaleon Alvarez, proposing to extend the benefits and protections granted to spouses to same-sex and opposite-sex civil partners.	Persuasive	House of Representatives Legislative Information System (congress.gov.ph)
7.	H. No. 4982, 17th Cong., 1st Sess. (2017). The SOGIE Equality Act, approved by the House of Representatives on third reading on September 20, 2017 by a vote of 198–0, but never enacted after stalling in the Senate.	Persuasive	House of Representatives Legislative Information System (congress.gov.ph)
	FOURTH LEVEL: LOCAL ORDINANCES. Delegated legislation that must not contravene the Constitution or any statute (Magtajas v. Pryce Properties Corp., G.R. No. 111097, July 20, 1994).		
I.	**LOCAL ORDINANCES AND RESOLUTIONS**		
1.	Quezon City Ordinance No. SP-3221, S-2023, September 25, 2023. Requires health facilities in Quezon City to recognize health care proxies, institutionalizing the "Right to Care" card that allows same-sex partners to make medical decisions for each other through a special power of attorney.	Mandatory	Sangguniang Panlungsod ng Quezon City; Quezon City Public Library digital repository (LIBROS)
2.	San Juan City Ordinance No. 16, S-2025 (2025). San Juan's "Right to Care" Ordinance requires public and private health facilities in the city to honor the Right to Care Card, through which LGBTQIA+ partners may make medical decisions for one another.	Mandatory	Sangguniang Panlungsod ng San Juan City

3.	Quezon City Ordinance No. SP-3417, S-2025, June 16, 2025. Revises the Quezon City Gender-Fair Ordinance into a comprehensive anti-discrimination policy on the basis of sexual orientation, gender identity and expression, and sex characteristics (SOGIESC).	Mandatory	Sangguniang Panlungsod ng Quezon City; Quezon City Public Library digital repository (LIBROS)
4.	Quezon City Ordinance No. SP-2357, S-2014, November 28, 2014. The Quezon City Gender-Fair Ordinance prohibits discrimination on the basis of sexual orientation and gender identity and expression in employment, education, accommodation, and the delivery of goods and services.	Mandatory	Sangguniang Panlungsod ng Quezon City; Quezon City Public Library digital repository (LIBROS)
5.	Quezon City Ordinance No. SP-1309, S-2003. An early local ordinance prohibiting discrimination against homosexuals in the workplace, later expanded by the Gender-Fair Ordinance.	Mandatory	Sangguniang Panlungsod ng Quezon City
6.	Davao City Ordinance No. 0417-12 (2012). Davao City's Anti-Discrimination Ordinance declares unlawful acts of discrimination based on, among others, sex, gender identity, and sexual orientation.	Mandatory	Sangguniang Panlungsod ng Davao City
7.	Cebu City Ordinance No. 2339 (2012). Prohibits discrimination on the basis of, among others, sexual orientation and gender identity, illustrating how LGBT protection has developed through local legislation in the absence of a national law.	Mandatory	Sangguniang Panlungsod ng Cebu City
	OUTSIDE THE PHILIPPINE HIERARCHY: REGIONAL AND FOREIGN SOURCES OF LAW (J and K are on the same level). Not binding in the Philippines; persuasive only, especially where Philippine law was patterned after them.		
J.	**REGIONAL SOURCES OF LAW**		
1.	ASEAN Human Rights Declaration, art. 19 (November 18, 2012). Adopted by ASEAN leaders including the Philippines, it recognizes the right of "men and women of full age" to marry and found a family "as prescribed by law," deferring to national law on the definition of marriage.	Persuasive	ASEAN Secretariat website (asean.org)

2.	Convention for the Protection of Human Rights and Fundamental Freedoms, November 4, 1950 (1953), 213 U.N.T.S. 221, arts. 8, 12, 14. The European Convention's guarantees of private and family life, the right to marry, and non-discrimination, through which the European Court of Human Rights developed its case law on same-sex couples.	Persuasive	Council of Europe Treaty Office (coe.int); United Nations Treaty Series
3.	Schalk & Kopf v. Austria, App. No. 30141/04, Eur. Ct. H.R. (June 24, 2010). Held that the European Convention does not oblige States to open marriage to same-sex couples, while recognizing that a cohabiting same-sex couple enjoys "family life."	Persuasive	HUDOC database of the European Court of Human Rights (hudoc.echr.coe.int)
4.	Oliari v. Italy, App. Nos. 18766/11 & 36030/11, Eur. Ct. H.R. (July 21, 2015). Found that Italy violated Article 8 by failing to provide any legal framework recognizing and protecting same-sex unions.	Persuasive	HUDOC database of the European Court of Human Rights (hudoc.echr.coe.int)
5.	Orlandi v. Italy, App. No. 26431/12, Eur. Ct. H.R. (December 14, 2017). Held that Italy's refusal to give any form of recognition to same-sex marriages its nationals contracted abroad violated Article 8, a parallel to Filipino same-sex couples married abroad.	Persuasive	HUDOC database of the European Court of Human Rights (hudoc.echr.coe.int)
6.	Fedotova v. Russia, App. Nos. 40792/10, 30538/14 & 43439/14, Eur. Ct. H.R. (Grand Chamber, January 17, 2023). The Grand Chamber held that Article 8 imposes a positive obligation on States to provide a legal framework for the recognition and protection of same-sex couples.	Persuasive	HUDOC database of the European Court of Human Rights (hudoc.echr.coe.int)
7.	Case C-673/16, Coman v. Inspectoratul General pentru Imigrări, ECLI:EU:C:2018:385 (June 5, 2018). The Court of Justice of the European Union held that the term "spouse" in EU free-movement law includes a same-sex spouse, even in a Member State that does not allow same-sex marriage.	Persuasive	CURIA (curia.europa.eu); EUR-Lex (eur-lex.europa.eu)

8.	Gender Identity, and Equality and Non-Discrimination of Same-Sex Couples, Advisory Opinion OC-24/17, Inter-Am. Ct. H.R. (ser. A) No. 24 (November 24, 2017). The Inter-American Court of Human Rights opined that States must recognize and protect same-sex couples, including access to marriage, without discrimination.	Persuasive	Inter-American Court of Human Rights website (corteidh.or.cr)
9.	Atala Riffo & Daughters v. Chile, Merits, Reparations and Costs, Inter-Am. Ct. H.R. (ser. C) No. 239 (February 24, 2012). Held that denying a lesbian mother custody of her daughters because of her sexual orientation and her cohabitation with a same-sex partner violated the American Convention on Human Rights.	Persuasive	Inter-American Court of Human Rights website (corteidh.or.cr)
K.	**SOURCES OF LAW FROM OTHER JURISDICTIONS *(same level as regional sources of law)***		
1.	Obergefell v. Hodges, 576 U.S. 644 (2015). The United States Supreme Court held that the Fourteenth Amendment requires States to license marriages between two persons of the same sex and to recognize such marriages performed elsewhere.	Persuasive	United States Reports; Supreme Court of the United States website; Cornell Legal Information Institute
2.	United States v. Windsor, 570 U.S. 744 (2013). Struck down Section 3 of the Defense of Marriage Act, which had defined marriage for federal purposes as only between a man and a woman.	Persuasive	United States Reports; Supreme Court of the United States website; Cornell Legal Information Institute
3.	Lawrence v. Texas, 539 U.S. 558 (2003). Invalidated laws criminalizing intimate same-sex conduct as violating the liberty protected by the due process clause, paving the way for later recognition of same-sex relationships.	Persuasive	United States Reports; Supreme Court of the United States website; Cornell Legal Information Institute
4.	Loving v. Virginia, 388 U.S. 1 (1967). Struck down bans on interracial marriage and affirmed marriage as a fundamental right, the precedent most often analogized in same-sex marriage litigation.	Persuasive	United States Reports; Supreme Court of the United States website; Cornell Legal Information Institute

5.	Goodridge v. Department of Public Health, 798 N.E.2d 941 (Mass. 2003). The Supreme Judicial Court of Massachusetts became the first United States state high court to hold that excluding same-sex couples from civil marriage violated a state constitution.	Persuasive	North Eastern Reporter, Second Series; Justia; Westlaw
6.	303 Creative LLC v. Elenis, 600 U.S. 570 (2023). Held that the First Amendment bars a State from compelling a web designer to create expressive wedding websites for same-sex couples contrary to her beliefs, illustrating the religious-liberty conflicts that accompany marriage equality.	Persuasive	United States Reports; Supreme Court of the United States website; Cornell Legal Information Institute
7.	U.S. Respect for Marriage Act, Pub. L. No. 117-228, 136 Stat. 2305 (2022). Repealed the Defense of Marriage Act and requires federal and interstate recognition of same-sex and interracial marriages validly entered into under State law.	Persuasive	Congress.gov; U.S. Government Publishing Office (govinfo.gov)
8.	Reference re Same-Sex Marriage, [2004] 3 S.C.R. 698 (Can.). The Supreme Court of Canada advised that Parliament has the authority to extend civil marriage to same-sex couples and that doing so is consistent with the Canadian Charter of Rights and Freedoms.	Persuasive	Supreme Court of Canada Judgments (scc-csc.lexum.com); CanLII
9.	Can. Civil Marriage Act, S.C. 2005, c. 33. Defines marriage for civil purposes as “the lawful union of two persons to the exclusion of all others,” legalizing same-sex marriage throughout Canada.	Persuasive	Justice Laws Website (laws-lois.justice.gc.ca)
10.	Minister of Home Affairs v. Fourie, 2006 (1) SA 524 (CC) (S. Afr.). The Constitutional Court of South Africa held that excluding same-sex couples from marriage violated their rights to equality and dignity and directed Parliament to cure the defect, leading to the Civil Union Act 17 of 2006.	Persuasive	SAFLII (saflii.org); Constitutional Court of South Africa website
11.	U.K. Marriage (Same Sex Couples) Act 2013, c. 30. Extended marriage to same-sex couples in England and Wales while protecting religious organizations that decline to solemnize such marriages.	Persuasive	legislation.gov.uk

12.	Austl. Marriage Amendment (Definition and Religious Freedoms) Act 2017 (Cth). Redefined marriage in the Marriage Act 1961 as a union of two people rather than of a man and a woman, following a national postal survey, while allowing religious celebrants to decline to solemnize same-sex marriages.	Persuasive	Federal Register of Legislation (legislation.gov.au)
13.	J.Y. Interpretation No. 748 (Judicial Yuan, May 24, 2017) (Taiwan). Taiwan's Constitutional Court held that the Civil Code's failure to allow same-sex couples to form a permanent union violated the freedom of marriage and the right to equality, giving the legislature two years to act.	Persuasive	Constitutional Court, Republic of China (Taiwan) website (cons.judicial.gov.tw)
14.	Taiwan Act for Implementation of J.Y. Interpretation No. 748 (2019). Made Taiwan the first jurisdiction in Asia to allow same-sex couples to register marriages, through a special statute rather than an amendment of the Civil Code.	Persuasive	Laws & Regulations Database of the Republic of China (law.moj.gov.tw)
15.	Thai. Civil and Commercial Code Amendment Act (No. 24), B.E. 2567 (2024). Thailand's Marriage Equality Act, effective January 23, 2025, replaced gendered terms with gender-neutral ones and made Thailand the first ASEAN member State to legalize same-sex marriage.	Persuasive	Royal Thai Government Gazette (ratchakitcha.soc.go.th)
16.	Sham Tsz Kit v. Secretary for Justice, [2023] HKCFA 28 (H.K.). Hong Kong's Court of Final Appeal required the government to establish an alternative framework for recognizing same-sex partnerships without requiring same-sex marriage; the resulting bill was rejected by the Legislative Council in September 2025.	Persuasive	Hong Kong Judiciary Legal Reference System (legalref.judiciary.hk); HKLII
17.	QT v. Director of Immigration, [2018] HKCFA 28 (H.K.). Held that denying a dependant visa to the same-sex civil partner of an employment-visa holder was unjustified, prompting recognition of foreign same-sex unions for immigration purposes.	Persuasive	Hong Kong Judiciary Legal Reference System (legalref.judiciary.hk); HKLII

18.	Supriyo Chakraborty v. Union of India, 2023 INSC 920 (India). The Supreme Court of India declined to recognize a fundamental right of queer couples to marry or to read same-sex marriage into the Special Marriage Act, leaving the matter to Parliament.	Persuasive	Supreme Court of India website (sci.gov.in); Indian Kanoon
19.	Judgment of March 14, 2024, Sapporo Kōtō Saibansho [Sapporo High Court] (Japan). Held that Japan's non-recognition of same-sex marriage is unconstitutional, one of several high court rulings referred in 2026 to the Grand Bench of the Supreme Court of Japan.	Persuasive	Courts in Japan website (courts.go.jp)
20.	Code of Canon Law (1983), can. 1055, § 1 (Holy See). Defines the matrimonial covenant as one "by which a man and a woman establish between themselves a partnership of the whole of life," a canonical source given persuasive weight in Philippine family law.	Persuasive	Holy See website (vatican.va)
	SECONDARY SOURCES		
A.	**TREATISES AND LEGAL BOOKS**		
1.	1 ARTURO M. TOLENTINO, COMMENTARIES AND JURISPRUDENCE ON THE CIVIL CODE OF THE PHILIPPINES (1990). The leading civil law treatise by a member of the Code Commission, explaining the nature, requisites, and effects of marriage under the Family Code.	Persuasive	
2.	ALICIA V. SEMPIO-DIY, HANDBOOK ON THE FAMILY CODE OF THE PHILIPPINES (1988). Written by a member of the committees that drafted the Family Code, it explains the drafters' rationale for the requisites of marriage and the grounds for annulment and legal separation, including those involving homosexuality.	Persuasive	

3.	MELENCIO S. STA. MARIA, JR., PERSONS AND FAMILY RELATIONS LAW (5th ed., 2010). A widely used treatise on the Family Code that discusses the essential requisites of marriage, including the requirement that the contracting parties be a male and a female.	Persuasive	
4.	JOAQUIN G. BERNAS, S.J., THE 1987 CONSTITUTION OF THE REPUBLIC OF THE PHILIPPINES: A COMMENTARY (2009). The authoritative commentary by a member of the 1986 Constitutional Commission on the equal protection clause and on Article XV's provisions on marriage and the family.	Persuasive	
5.	JOAQUIN G. BERNAS, S.J., THE INTENT OF THE 1986 CONSTITUTION WRITERS (1995). Reconstructs the deliberations of the Constitutional Commission, useful in determining what the framers intended by the protection of marriage in Article XV.	Persuasive	
6.	LEGAL RECOGNITION OF SAME-SEX PARTNERSHIPS: A STUDY OF NATIONAL, EUROPEAN AND INTERNATIONAL LAW (Robert Wintemute & Mads Andenæs eds., 2001). A comprehensive comparative study of registered partnership and marriage regimes for same-sex couples across national, European, and international law.	Persuasive	
7.	WILLIAM N. ESKRIDGE, JR., THE CASE FOR SAME-SEX MARRIAGE: FROM SEXUAL LIBERTY TO CIVILIZED COMMITMENT (1996). A foundational legal argument for same-sex marriage grounded on history, equality, and the social value of committed relationships.	Persuasive	
8.	WILLIAM N. ESKRIDGE, JR. & CHRISTOPHER R. RIANO, MARRIAGE EQUALITY: FROM OUTLAWS TO IN-LAWS (2020). A comprehensive legal history of the movement that culminated in *Obergefell v. Hodges*, useful for comparing litigation and legislative strategies.	Persuasive	

9.	MICHAEL J. KLARMAN, FROM THE CLOSET TO THE ALTAR: COURTS, BACKLASH, AND THE STRUGGLE FOR SAME-SEX MARRIAGE (2013). Examines how court rulings on same-sex marriage in the United States provoked political backlash, offering perspective on the Philippine Supreme Court's deference to Congress in *Falcis*.	Persuasive	
10.	YUVAL MERIN, EQUALITY FOR SAME-SEX COUPLES: THE LEGAL RECOGNITION OF GAY PARTNERSHIPS IN EUROPE AND THE UNITED STATES (2002). Compares models of partnership recognition short of marriage, informing the civil partnership alternative proposed in Philippine bills.	Persuasive	
11.	PAUL JOHNSON, HOMOSEXUALITY AND THE EUROPEAN COURT OF HUMAN RIGHTS (2013). Analyzes the European Court of Human Rights' case law on sexual orientation, including its gradual approach to recognizing same-sex relationships.	Persuasive	
12.	SHERIF GIRGIS, RYAN T. ANDERSON & ROBERT P. GEORGE, WHAT IS MARRIAGE? MAN AND WOMAN: A DEFENSE (2012). Presents the leading natural-law argument for the conjugal, man-and-woman conception of marriage, representing the opposing view in the debate.	Persuasive	
B.	**LAW JOURNAL AND LAW REVIEW ARTICLES**		
1.	Ignacio Lorenzo Dela Cruz Villareal, *A Comprehensive Case for the Recognition in the Philippines of Same-Sex Marriages Between Filipinos Abroad*, 99 PHIL. L.J. 1 (2025). Argues that same-sex marriages of Filipinos validly celebrated abroad can and should be recognized under Article 26 of the Family Code without further legislation.	Persuasive	
2.	Maria Janina Ann Bordon, *The Universal Human Rights to Marry and to Found a Family*, 88 PHIL. L.J. 848 (2014). Invokes the Yogyakarta Principles and international human rights law as a soft-law basis for the marriage rights of LGBT Filipinos.	Persuasive	

3.	Oscar Franklin B. Tan, *Marriage Through Another Lens: Weighing the Validity of Same-Sex Marriages by Applying Arguments to Bisexuals and Transsexuals*, 81 PHIL. L.J. 789 (2007). Tests the arguments on the validity of same-sex marriages under Philippine law by applying them to bisexual and transsexual persons.	Persuasive	
4.	Joseph T. Gonzales, *International Legal Protection for Homosexual Sexual Conduct*, 72 PHIL. L.J. 1 (1997). An early Philippine scholarly survey of international human rights protection based on sexual orientation, providing background for later claims to recognize same-sex relationships.	Persuasive	
5.	Luis Jose F. Geronimo, *Rising above Contempt: SOGIESC Equality and LGBTQI+ Rights in Philippine Law through the Lens of Falcis v. Civil Registrar General*, 64 ATENEO L.J. (2020), *available at* https://ateneolj.com/archive/article/930. Examines *Falcis* and its implications for SOGIESC equality and the rights of LGBTQI+ persons under Philippine law.	Persuasive	
6.	William N. Eskridge, Jr., *A History of Same-Sex Marriage*, 79 VA. L. REV. 1419 (1993). Documents historical and cross-cultural recognition of same-sex unions to rebut the definitional argument that marriage has always been between a man and a woman.	Persuasive	
7.	Andrew Koppelman, *Why Discrimination Against Lesbians and Gay Men Is Sex Discrimination*, 69 N.Y.U. L. REV. 197 (1994). Develops the theory that restricting marriage to a man and a woman is a sex-based classification, an argument relevant to equal protection challenges such as *Falcis*.	Persuasive	

8.	Laurence R. Helfer & Alice M. Miller, *Sexual Orientation and Human Rights: Toward a United States and Transnational Jurisprudence*, 9 HARV. HUM. RTS. J. 61 (1996). Traces the emergence of sexual orientation as a protected ground in international and comparative human rights law.	Persuasive	
9.	Kees Waaldijk, *Others May Follow: The Introduction of Marriage, Quasi-Marriage, and Semi-Marriage for Same-Sex Couples in European Countries*, 38 NEW ENG. L. REV. 569 (2004). Classifies European models of recognition into marriage, quasi-marriage, and semi-marriage, a framework useful for evaluating Philippine civil partnership proposals.	Persuasive	
10.	Kenji Yoshino, *A New Birth of Freedom?: Obergefell v. Hodges*, 129 HARV. L. REV. 147 (2015). Analyzes how *Obergefell* reshaped substantive due process doctrine in recognizing the right of same-sex couples to marry.	Persuasive	
11.	John Finnis, *Law, Morality, and "Sexual Orientation"*, 69 NOTRE DAME L. REV. 1049 (1994). A leading natural-law critique of the legal recognition of same-sex relationships, representing the philosophical case against same-sex marriage.	Persuasive	
12.	Sherif Girgis, Robert P. George & Ryan T. Anderson, *What Is Marriage?*, 34 HARV. J.L. & PUB. POL'Y 245 (2011). Defends the conjugal view of marriage as inherently a union of a man and a woman, a widely cited legal-academic argument against same-sex marriage.	Persuasive	

C.	**LEGAL ENCYCLOPEDIAS AND DICTIONARIES**		
1.	Kees Waaldijk, *Same-Sex Partnership, International Protection*, 8 MAX PLANCK ENCYCLOPEDIA OF PUBLIC INTERNATIONAL LAW 1125 (Rüdiger Wolfrum ed., 2012). Summarizes emerging international norms on the protection of same-sex partnerships, including the prohibition of discrimination between unmarried same-sex and different-sex cohabitants.	Persuasive	
2.	*Civil union*, BLACK'S LAW DICTIONARY (11th ed. 2019). Defines a civil union as a marriage-like relationship, often between persons of the same sex, recognized by civil authorities, a status comparable to the civil partnerships proposed in Philippine bills.	Persuasive	
3.	Elizabeth Brake, *Marriage and Domestic Partnership*, STANFORD ENCYCLOPEDIA OF PHILOSOPHY (Spring 2026 ed.), https://plato.stanford.edu/archives/spr2026/entries/marriage/. Surveys the philosophical debates on the definition of marriage, same-sex marriage, and alternatives such as domestic partnership.	Persuasive	
D.	**REPORTS AND DOCUMENTS OF INTERNATIONAL ORGANIZATIONS AND EXPERT BODIES**		
1.	U.N. OFFICE OF THE HIGH COMMISSIONER FOR HUMAN RIGHTS, BORN FREE AND EQUAL: SEXUAL ORIENTATION, GENDER IDENTITY AND SEX CHARACTERISTICS IN INTERNATIONAL HUMAN RIGHTS LAW (2d ed., 2019). The United Nations' guide to State obligations toward LGBTI persons, including non-discrimination between same-sex and different-sex couples in State benefits.	Persuasive	

2.	THE YOGYAKARTA PRINCIPLES: PRINCIPLES ON THE APPLICATION OF INTERNATIONAL HUMAN RIGHTS LAW IN RELATION TO SEXUAL ORIENTATION AND GENDER IDENTITY (2007), Principle 24. Expert principles affirming the right to found a family regardless of sexual orientation, which the Supreme Court in *Ang Ladlad* characterized as non-binding and at best *de lege ferenda*.	Persuasive	
3.	THE YOGYAKARTA PRINCIPLES PLUS 10: ADDITIONAL PRINCIPLES AND STATE OBLIGATIONS ON THE APPLICATION OF INTERNATIONAL HUMAN RIGHTS LAW IN RELATION TO SEXUAL ORIENTATION, GENDER IDENTITY, GENDER EXPRESSION AND SEX CHARACTERISTICS (2017). Supplements the 2007 Principles with additional State obligations adopted by international human rights experts on November 10, 2017.	Persuasive	
4.	UNDP & USAID, BEING LGBT IN ASIA: THE PHILIPPINES COUNTRY REPORT (2014). Documents the legal and social situation of LGBT Filipinos, noting that same-sex marriage is not allowed and that same-sex couples cannot adopt children.	Persuasive	
E.	**PUBLICATIONS OF GOVERNMENT AND ACADEMIC INSTITUTIONS, AND LECTURES**		
1.	Dante B. Gatmaytan, *Finding Fault: Marriage Equality, Judicial Deference, and Falcis* (Estelito P. Mendoza Professorial Chair in Law Lecture, University of the Philippines College of Law, June 18, 2020), *available at* https://law.upd.edu.ph/wp-content/uploads/2020/06/Finding-Fault-Falcis.pdf. A U.P. Law professorial chair lecture critiquing the procedural dismissal in *Falcis*, proposing a framework for courts reviewing discrimination claims and arguing against the constitutionality of Family Code Articles 1 and 2.	Persuasive	

2.	U.P. College of Law Gender Law and Policy Program, *Josef v. Ursua: Implications on Family Relations and Property Rights* (Proceedings, 2026), *available at* https://law.upd.edu.ph/wp-content/uploads/2026/07/Josef-v-Ursua-Proceedings.pdf. Proceedings of a March 18, 2026 forum analyzing the effects of *Josef v. Ursua* on family relations, property, succession, and the advocacy for marriage equality.	Persuasive	
3.	Commission on Human Rights, *Statement of the Commission on Human Rights on the Rejection of the Philippine Delegation of the Recommendation During the Universal Periodic Review to Pass the SOGIE Equality Bill* (2022), https://chr.gov.ph/2022/statements/statement-of-the-commission-on-human-rights-on-the-rejection-of-the-philippine-delegation-of-the-recommendation-during-the-universal-periodic-review-to-pass-the-sogie-equality-bill/. Urges the government to reconsider its rejection, during the 2022 Universal Periodic Review, of recommendations to pass the SOGIE Equality Bill, invoking the Constitution's equal protection guarantee.	Persuasive	
4.	Commission on Human Rights, *Statement of the Commission on Human Rights Lauding Quezon City's Initiative to Launch the Right to Care Card* (July 4, 2023), https://chr.gov.ph/statement-of-the-commission-on-human-rights-lauding-quezon-citys-initiative-to-launch-the-right-to-care-card/. Commends the Right to Care card as a step toward recognizing the relationships of LGBTQIA+ couples and calls for more inclusive policies.	Persuasive	
5.	Philippine Commission on Women, *Enacting the Anti-Discrimination Based on SOGIE Act* (WPLA Policy Brief No. 8, 2019). A policy brief of the government's gender-equality agency supporting a national anti-discrimination law on the basis of sexual orientation and gender identity and expression.	Persuasive	

F.	**NON-LEGAL SCHOLARLY WORKS**		
1.	Jayeel Cornelio & Robbin Charles M. Dagle, *Weaponising Religious Freedom: Same-Sex Marriage and Gender Equality in the Philippines*, 14 RELIGION & HUM. RTS. 65 (2019). A sociological study of how religious freedom has been invoked against advocates of same-sex marriage and gender equality in the Philippines.	Persuasive	
2.	J. NEIL C. GARCIA, PHILIPPINE GAY CULTURE: THE LAST THIRTY YEARS, BINABAE TO BAKLA, SILAHIS TO MSM (1996). A foundational study of Filipino gay identities and culture that contextualizes the social realities of same-sex relationships in the Philippines.	Persuasive	
3.	MARTIN F. MANALANSAN IV, GLOBAL DIVAS: FILIPINO GAY MEN IN THE DIASPORA (2003). An ethnography of Filipino gay men abroad, relevant to Filipino same-sex couples who marry or form partnerships in foreign jurisdictions.	Persuasive	
4.	David R. Corpuz, *The Wedding Video and the Persistence of the Marriage Model, Romantic Love Myth, and Heteronormativity in Filipino Same-Sex Relationships*, 5 DALUMAT E-J. (2019), *available at* https://www.ejournals.ph/article.php?id=14302. Analyzes a Filipino gay couple's wedding video and public reactions to it, showing how marriage remains an ideal for Filipino same-sex couples despite the lack of legal recognition.	Persuasive	
G.	**RELIGIOUS AND DOCTRINAL DOCUMENTS**		
1.	Dicastery for the Doctrine of the Faith, *Declaration Fiducia Supplicans on the Pastoral Meaning of Blessings* (December 18, 2023). Permits non-liturgical pastoral blessings of couples in irregular situations, including same-sex couples, while maintaining the Catholic teaching that marriage is between a man and a woman.	Persuasive	

2.	CATECHISM OF THE CATHOLIC CHURCH nos. 2357-2359 (2d ed., 1997). States the Church's teaching that homosexual persons must be treated with respect, compassion, and sensitivity while homosexual acts are disordered, a teaching that informs much of the religious opposition to same-sex marriage in the Philippines.	Persuasive	
H.	**SURVEYS AND REPORTS OF NON-GOVERNMENTAL ORGANIZATIONS**		
1.	Human Rights Watch, *"Just Let Us Be": Discrimination Against LGBT Students in the Philippines* (June 22, 2017), https://www.hrw.org/report/2017/06/22/just-let-us-be/discrimination-against-lgbt-students-philippines. Documents bullying, discriminatory policies, and the lack of support for LGBT students, depicting the broader climate of discrimination that shapes the marriage-equality debate.	Persuasive	
2.	Human Rights Watch, *Philippine Supreme Court Grants Property Rights to Same-Sex Couples* (February 17, 2026), https://www.hrw.org/news/2026/02/17/philippine-supreme-court-grants-property-rights-to-same-sex-couples. Assesses *Josef v. Ursua* as a significant but limited step and notes that Congress has yet to enact legal recognition of same-sex couples.	Persuasive	
3.	Pew Research Center, *The Global Divide on Homosexuality Persists* (June 25, 2020), https://www.pewresearch.org/global/2020/06/25/global-divide-on-homosexuality-persists/. Reports that 73% of Filipino respondents in a 2019 survey said homosexuality should be accepted by society, evidence of social attitudes relevant to legislative recognition.	Persuasive	

I.	**NEWSPAPER AND ONLINE NEWS ARTICLES**		
1.	*Supreme Court: Same-sex couples can be recognized as property co-owners*, PHILIPPINE STAR, February 10, 2026, https://www.philstar.com/headlines/2026/02/10/2507065/supreme-court-same-sex-couples-can-be-recognized-property-co-owners. Reports the Supreme Court's ruling in *Josef v. Ursua* that same-sex partners may be co-owners of property acquired through their actual joint contributions.	Persuasive	
2.	*Supreme Court: Hiding homosexuality is valid ground for annulment*, PHILIPPINE STAR, July 16, 2025, https://www.philstar.com/headlines/2025/07/16/2458169/supreme-court-hiding-homosexuality-valid-ground-annulment. Reports the ruling in *Salva-Roldan v. Roldan* that concealment of homosexuality is fraud justifying the annulment of a marriage.	Persuasive	
3.	*House lawmaker renews push for same-sex civil partnerships*, ABS-CBN NEWS, April 15, 2024, https://news.abs-cbn.com/news/2024/4/15/house-lawmaker-renews-push-for-same-sex-civil-partnerships-940. Reports renewed efforts in the House of Representatives to pass a civil partnership law for same-sex couples.	Persuasive	
4.	*CBCP endorses Vatican document allowing pastoral blessings for same-sex couples*, LICAS NEWS, December 21, 2023, https://philippines.licas.news/2023/12/21/cbcp-endorses-vatican-document-allowing-pastoral-blessings-for-same-sex-couples/. Reports the Catholic Bishops' Conference of the Philippines' endorsement of *Fiducia Supplicans*, indicating the pastoral stance of the Philippine Catholic hierarchy toward same-sex couples.	Persuasive	

5.	RG Cruz, *House begins tackling civil partnership bills*, ABS-CBN NEWS, May 10, 2023, https://www.abs-cbn.com/news/05/10/23/house-begins-tackling-civil-partnership-bills. Reports the start of House committee deliberations on civil partnership bills in the 19th Congress.	Persuasive	
6.	*Same-sex civil unions in the Philippines: What you need to know*, PHILIPPINE STAR, August 13, 2022, https://www.philstar.com/headlines/2022/08/13/2202445/same-sex-civil-unions-philippines-what-you-need-know. Explains the pending civil union bills and the legal situation of same-sex couples in the Philippines for a general audience.	Persuasive	
7.	*Padilla seeks equal rights for same-sex couples in civil union bill*, PHILIPPINE STAR, August 11, 2022, https://www.philstar.com/headlines/2022/08/11/2201984/padilla-seeks-equal-rights-same-sex-couples-civil-union-bill. Reports Senator Padilla's filing of a bill granting same-sex couples in civil unions the rights and protections of married couples.	Persuasive	
8.	*Palace: With Pope's backing, no more reason for Catholic solons to oppose same-sex civil unions*, PHILIPPINE STAR, October 22, 2020, https://www.philstar.com/headlines/2020/10/22/2051522/headlines. Reports Malacañang's statement that Pope Francis's support for civil unions removed any reason for Catholic legislators to oppose same-sex civil union bills.	Persuasive	
9.	*SC junks same-sex marriage petition 'with finality'*, ABS-CBN NEWS, January 6, 2020, https://news.abs-cbn.com/news/01/06/20/sc-junks-same-sex-marriage-petition-with-finality. Reports the Supreme Court's denial with finality of the motion for reconsideration in *Falcis*, ending the first judicial bid for same-sex marriage in the Philippines.	Persuasive	

10.	*SWS: 61% of Filipinos reject same-sex marriage*, SUNSTAR CAGAYAN DE ORO, July 1, 2018, https://www.pressreader.com/philippines/sunstar-cagayan-de-oro/20180701/281509341929204. Reports the Social Weather Stations survey finding that 61% of Filipinos opposed, and 22% supported, a law allowing the civil union of two men or two women.	Persuasive	
11.	*House okays SOGIE bill on 3rd and final reading*, INTERAKSYON, September 20, 2017, https://interaksyon.philstar.com/breaking-news/2017/09/20/98551/house-okays-sogie-bill-on-3rd-and-final-reading/. Reports the House of Representatives' 198–0 approval of the SOGIE Equality Bill on third and final reading.	Persuasive	